

INDIVIDUAL OPINION BY M. ANZILOTTI.

[*Translation.*]

I consider that the Court should not have given the opinion for which it was asked by the Council; my reasons are briefly as follows.

1.—At its very first session, in the winter of 1922, the Court considered very closely the problems arising in connection with the exercise of the advisory function entrusted to it by Article 14 of the Covenant of the League of Nations. This function, which is only very exceptionally entrusted to courts, did not fail to give rise to grave doubts and misgivings with regard to its consistency with the essential function of the Court, i.e. the judicial settlement of international disputes.

The attention of the Court at that time was particularly directed to the question whether and in what circumstances it could refuse to comply with a request for an advisory opinion addressed to it by the Assembly or by the Council of the League of Nations.

This question was discussed at length in a memorandum which Judge J. B. Moore submitted to the Court on February 18th, 1922, and which is to be found in Series D., No. 2, of the Publications of the Court (*Acts and Documents concerning the organization of the Court*), pages 383-398. The conclusion reached by Mr. J. B. Moore was that the Court is not under an unconditional obligation to give advisory opinions upon request, but that if it receives a request of this kind, it should then deal with the application according to what should be found to be the nature and the merits of the case. This conclusion was based, firstly, on a comparison of the two official texts of Article 14 of the Covenant, in which alone is the subject mentioned, and on the necessity of adopting an interpretation paying due regard to the permissive language—importing discretion—of the English text (The Court may also....) and not incompatible with the wider terms of the French text (*Elle donnera aussi....*). Secondly, this conclusion was based on the fact that it is the duty of the Court at all costs to safeguard the fundamental purpose which it is designed to achieve, namely, the advancement of the application between nations of the principle and method of judicial decision.

The Court concurred in this view. At the meeting on March 10th, 1922, Judge Altamira having raised the question whether some provision safeguarding the Court's right to refuse to give opinions should not be included in the Rules, Lord Finlay explained

that it would be preferable not to insert anything to this effect in the Rules. Any provision—he said—which might be inserted would be in the nature of an interpretation of Article 14 of the Covenant; the Court however could not be bound by such an interpretation and would have to give a fresh interpretation in regard to each case as it arose. The discussion was concluded by a short observation by M. Weiss, which confirmed the right of the Court to refuse to reply to questions referred to it.

The Court, applying these principles and because it would have been constrained to deviate from the essential rules which govern its function as a court and which it must follow even when giving an advisory opinion, refused to give the opinion for which it had been asked by the Council in the case concerning Eastern Carelia (*Publications of the Court*, Series B., No. 5). There is no reason to suppose that the Court has ever meant to modify its attitude. It is, indeed, difficult to see how the Court's independence of the political organs of the League of Nations could be safeguarded, if it were in the power of the Assembly or the Council to oblige the Court to answer any question which they might see fit to submit to it.

2.—Assuming that Article 14 of the Covenant is not to be regarded as placing the Court under an obligation in all circumstances to give advisory opinions, but that it allows the Court a measure of discretion and consequently the option of refusing to do so when circumstances render that course advisable or essential, it seems difficult to avoid the admission that, in the present case, there were very good reasons why the Court should not have given the opinion for which it was asked.

The question submitted to the Court is one purely of Danzig constitutional law; international law does not come into it at all. It neither is nor can be disputed, however, that the Court has been created to administer international law. Article 38 of the Statute, which states the sources of law to be applied by the Court, only mentions international treaties or custom and the elements subsidiary to these two sources, to be applied if both of them are lacking. It follows that the Court is reputed to know international law; but it is not reputed to know the domestic law of the different countries.

Of course the Court may have—and has often had—to decide as to the meaning and scope of a municipal law; it has even laid down in this connection some very important principles to which I will revert later. It has however done so only if and in so far as this is necessary for the settlement of international disputes, or in order to answer questions of international law. The interpretation of a municipal law as such and apart from

any question or dispute of an international character is no part of the Court's functions: it is fitted neither by its organization nor by its composition to undertake this; its authority and prestige have nothing to gain therefrom.

3.—It is true that the Constitution of the Free City of Danzig has been placed under the guarantee of the League of Nations, which customarily exercises it through the Council, and that this guarantee forms the subject of an international stipulation, namely Article 103 of the Treaty of Peace of Versailles.

This fact, however, would seem to be irrelevant so far as the point under consideration is concerned.

For the question referred to the Court is entirely unconnected with the nature and scope of the guarantee of the League of Nations, or with the interpretation of the article providing for this guarantee. The question is exclusively concerned with the interpretation of the Constitution of the Free City in relation to certain legislative decrees of the Danzig Senate concerning penal law: all that the guarantee of the League of Nations did was to give the Council an opportunity of asking the Court for an opinion. It is also certain—as the Court expressly states in its Opinion of February 4th, 1932, concerning the treatment of Polish nationals at Danzig—that the special features which the Danzig Constitution derives from Article 103 of the Treaty of Versailles cannot invest it with the character of an international instrument.

All that can be said is that the reason why the Council asked for the Court's opinion was because it desired to be informed as to the scope and effects of certain provisions of the Danzig Constitution and of certain acts of the Senate, in order to enable it to exercise the guarantee of the League of Nations. Now, although it is the right and obligation of the Council to obtain any information which it considers useful or necessary, it is equally true that it must do this by appropriate methods, and must not seek to impose on the Court duties differing from those for which it was created and organized. Appropriate methods were not lacking. A committee of jurists, versed in constitutional law and particularly in the German Constitutions on which the Danzig Constitution was based, could quite well have given the Council all the information that it needed. That is indeed the course which the Council followed in other similar cases relating to the same Constitution.

4.—The fact that the Court's opinion has been sought on a question which relates to the municipal law of a particular country, apart from any question of international law or of an

international dispute, suffices, in my view, to justify the Court in declining to give its opinion.

This argument applies with even greater force when the Court finds itself compelled, in order to give an opinion on a question of municipal law, to deviate from the rules which govern its action and procedure. That is what has happened in the present case, and from two points of view.

First, in regard to the method in which the Court has to proceed when it has to interpret a municipal law.

It should be observed, in regard to this matter, that the Court, in performing its function as an organ of international law, may have to consider municipal laws from two entirely distinct standpoints.

In the first place, it may have to examine municipal laws from the standpoint of their consistency with international law. The Court has sovereign power of adjudication on this point: "from the standpoint of international law and of the Court which is its organ, municipal laws are merely facts which express the will and constitute the activities of States, in the same manner as do legal decisions or administrative measures" (Judgment No. 7—Case concerning certain German interests in Polish Upper Silesia, p. 19).

Secondly, the Court may find it necessary to interpret a municipal law, quite apart from any question of its consistency or inconsistency with international law, simply as a law which governs certain facts, the legal import of which the Court is called upon to appraise. It was in regard to cases of that kind that the Court expressed itself in the following terms in the Serbian Loans case (Judgment No. 14, p. 46):

"The Court, having in these circumstances to decide as to the meaning and scope of a municipal law, makes the following observations: For the Court itself to undertake its own construction of municipal law, leaving on one side existing judicial decisions, with the ensuing danger of contradicting the construction which has been placed on such law by the highest national tribunal and which, in its results, seems to the Court reasonable, would not be in conformity with the task for which the Court has been established and would not be compatible with the principles governing the selection of its members. It would be a most delicate matter to do so, especially in cases concerning public policy—a conception the definition of which in any particular country is largely dependent on the opinion prevailing at any given time in such country itself—and in cases where no relevant provisions directly relate to the question at issue."

The importance which the Court attached to these considerations is shown by the fact that it did not hesitate to maintain them in their entirety in the Brazilian Loans case, although

it was adjudicating under a Special Agreement, Article VI of which prayed it to estimate the weight to be attached to municipal laws, without being bound by the decisions of the respective courts of the countries concerned (Judgment No. 15, pp. 123 *et seq.*).

It is agreed that in the present case the Court is not called on to appraise the Constitution or laws of Danzig from the standpoint of their consistency with international law ; the only issue is that of the consistency of certain Danzig legislative decrees with the Constitution of Danzig.

On the other hand, the Court has been informed that the Danzig courts are competent to determine the constitutionality of the laws, whether in regard to their form or their substance, and that a considerable jurisprudence, relating very closely to the matter submitted to the Court, exists on this very question.

The Court appears, however, to have held that it ought not to concern itself with the jurisprudence of the Danzig courts, but that it should freely interpret the Constitution and decrees in question. It is indeed highly probable that this was the Council's intention when it sought the opinion of the Court.

But though I can readily understand the point of view of the Council, which is an essentially political body and has to exercise the political duties of guarantor of the Free City's Constitution, I find it very difficult to agree that the Court, which is a judicial body and an organ of international law, should undertake to give its own interpretation of a municipal law, with which it is not reputed to be acquainted and of which it is certainly not an organ. If this procedure is the consequence of the question put by the Council, the only conclusion that I am able to draw is that the Council has asked the Court a question which it ought not to answer.

5.—Even more significant, from this point of view, is the position which the Court has been led to adopt in regard to its own rules of procedure.

As to whether the opinion that the Court is asked to give relates to a "question" or to a "dispute", that is a point that does not greatly interest me ; it is really a matter of words. The fact is that the Court was requested to give its opinion on a point arising out of an important political dispute between the majority party, that is the National-Socialist Party, on the one hand, and the three minority parties, namely the German National Party, the Centre Party and the Social-Democrat Party, on the other hand. The last-named parties had presented a petition to the High Commissioner of the League of Nations at Danzig, complaining that the decrees of the Senate of the Free City (henceforward composed of the

members of the National-Socialist Party), dated August 29th, 1935, were inconsistent with the Constitution; that petition had been transmitted to the Council by the High Commissioner, and it gave rise to the Resolution by which the Council decided to ask the Court's opinion on the question stated in the Request.

It is therefore manifest that those who could supply the Court with the necessary information, and who were in a position to put forward arguments and counter-arguments in support of one standpoint or the other, were the National-Socialist Party, on the one hand, and the three minority parties, on the other hand.

In an Order made on October 4th, 1935, the President of the Court declared, the Court not being in session, that the Free City fulfilled the conditions laid down in Article 73, paragraph 1, sub-paragraph 2, of the Rules of Court; in consequence a special and direct communication was sent to the Senate informing it that the Court was prepared to receive a written memorial and to hear an oral statement at a public sitting to be held for that purpose. On the other hand, as the minority parties did not fulfil the conditions laid down in the above-mentioned clause, the communication provided for therein was not sent to them. The President contented himself with acquainting them that, having regard to the shortness of the time that had elapsed between the publication of the decrees and the despatch of the petition, and to the possibility that information which might be of importance in regard to the issue referred to the Court had been omitted from the petition, the Court would be willing to receive an explanatory note from the petitioners in case they desired to elaborate the statements they had made in the petition.

In this way, the two Parties to the dispute, to which the question before the Court relates, were placed on a footing of manifest inequality. The majority party, of which the Senate of the Free City is composed, was enabled not only to submit to the Court a written memorial, but also to have oral statements made on its behalf by an Agent and Counsel, whereas the three minority parties were only allowed to send explanatory notes, without taking any part in the oral procedure: neither orally nor in writing were they given an opportunity of answering the contentions of their opponents, so that the case was never argued before the Court.

It may perhaps be contended that the resulting inequality between the majority party and the other parties in the proceedings before the Court is of no consequence, since the conclusion arrived at by the Court is favourable to the case of the minority parties: the latter could certainly have no reason

for complaint, and it is hardly likely that the Senate of the Free City would reproach the Court for having placed it in a privileged position.

It would be easy to reply that the hearing of both sides and the submission of the arguments in support of the respective contentions is designed to furnish the Court with all data for its decision and is therefore provided for in the essential interests of justice and consequently of the Court. As the Agent for the Free City pointed out in his statement on October 30th, 1935, in the absence of an opponent, there can be no certainty that all doubtful points will clearly be brought out at the hearing. The arguments which the minority parties would have presented would perhaps have strengthened their case, but it is also conceivable that they might have revealed weak points to the Court.

That, however, is not the point with which I am concerned. The essential point to my mind is that the Court, in order to be able to give this Opinion, was obliged either to set aside its Rules and create a procedure *ad hoc*, or to deviate from a rule so fundamental as that of the equality of parties; and the reason for this was that the case concerned a question of municipal law arising in connection with a domestic political dispute.

This more than suffices, once again, to lead to the conclusion that the opinion asked for was outside the scope of the functions for which the Court has been created and organized, and that it should not have given the opinion.

(Signed) D. ANZILOTTI.